

Ref: 35023306 / Policy No: IA1 1003338- KDV

12 February 2021

Richard McLean
2 Mccubbin Street
Footscray VIC 3011

Email: rich@richmclean.com.au

Dear Richard,

Policy: Income Assist Insurance
Insured Person: Richard McLean
Date of event: 22 January 2021
Policy Commencement Date: 18 November 2020

Thank you for submitting your claim in relation to the above policy on 10 February 2021.

We have considered the information provided and would like to outline the basis for our assessment decision.

On the complete claim form you reported you first noticed symptoms on August 2018 and on 22 January 2021 you ceased working due to stress, grief, shame, anger regarding legal persecution in relation to child sexual abuse case. You also stated

Dr Richard Moore has stated on the completed doctor's form that your disability began in August 2018 due to anxiety reaction triggered by legal system response to a court case. Treatment included psychiatric treatment.

We note that your Income Assist Insurance policy, which commenced on 18 November 2020, is subject to terms, conditions and exclusions including:

"4. Benefits

If You are Totally Disabled while Your Policy is in force, during the period that You are Totally Disabled We will pay You the Basic Benefit set out in section below, unless an exclusion applies in section 6.

5. Definitions

Pre-existing Condition means any condition, illness or ailment where the signs or symptoms of which in the opinion of a medical practitioner appointed by HCF Life, existed at any time before this Policy was entered into, even if a diagnosis had not been made.

6. Exclusions

No benefit is payable to the You if the You are Totally Disabled as a result of:

(g) any mental illness (unless You receive a workers compensation claim as a result of the same condition) including anxiety, stress, depression, psychoses, neuroses, physical fatigue, personality disorder, addiction, psychiatric disorder or any associated disease or disorder;
(i) a Pre-existing Condition."

As per the above policy wording from your Income Assist Insurance policy, no benefit shall be paid if you are Totally Disabled as a result of a mental illness, which is defined by the policy as per Section 2. Definitions. Due to all of the

information provided by Dr Richard Moore and yourself outlined above, we have determined that as you are not in receipt of Workers' Compensation for your anxiety/stress and therefore the above exclusion applies. Due to this are unable to accept liability and are unable to pay your claim.

Furthermore, as your condition existed prior to the policy being entered into, the Pre-existing exclusion applies and due to this we are also unable to accept liability and are unable to pay your claim.

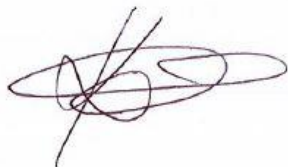
We are sorry that this may not be the outcome you were anticipating. Should you have further information which you believe would support your claim, please provide it to us and we will review it.

You have the right to copies of the documents and information we relied on in assessing your claim. If you wish to obtain copies of any of the documents relied upon, we will provide you (or your doctor, where appropriate) with copies within ten business days, in accordance with the Access to Information section of the Code.

Where our decisions remain unchanged following a review of any additional information, your claim may be escalated as an internal dispute for consideration by our Claims Review Committee if you are dissatisfied with the outcome or process.

For any disputes, or for more information about your claim or the assessment process, please contact us on the details below.

Yours sincerely,



Kuhnyleen de Vera
Life Senior Claim Assessor
HCF Life Customer Service
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